

26STCV05723 26STCV05723

County: los-angeles

Division: Civil Law and Motion

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Case Number: 26STCV05723 Hearing Date: July 13, 2026 Dept: 408

1.

Defendant

Louis S. Park, MD's Demurrer to Plaintiff Dug Soon Kim's Complaint is
SUSTAINED.

2.

Defendant

Louis S. Park's Motion to Strike Portions of Plaintiff Dug Soon Kim's Complaint
is DENIED as moot.

I.

BACKGROUND

On February 24, 2026, Plaintiff Dug
Soon Kim ("Plaintiff") filed a complaint against Defendant Louis S. Park, MD
("Defendant") alleging causes of action for:

1.

Negligence;
and

2.

Negligent
Infliction of Emotional Distress.

On April 10, 2026, Defendant filed
this Demurrer and Motion to Strike as to Plaintiff's complaint. On May 13,
2026, Plaintiff filed an opposition. On July 6, 2026, Defendant filed a reply.

II.

DEMURRER

A.

Legal

Standard

“The

party against whom a complaint or cross-complaint has been filed may object, by demurrer or answer as provided in Section 430.30, to the pleading on any one or more of” various grounds listed in statute. (Code Civ. Proc., § 430.10.)

When

considering demurrers, courts read the allegations liberally and in context. In a demurrer proceeding, the defects must be apparent on the face of the pleading or via proper judicial notice. (Donabedian v. Mercury Ins. Co. (2004) 116 Cal.App.4th 968, 994.) “A demurrer tests the pleading alone, and not the evidence or facts alleged.” (E-Fab, Inc. v. Accountants, Inc. Servs. (2007) 153 Cal.App.4th 1308, 1315.) As such, the court assumes the truth of the complaint’s properly pleaded or implied factual allegations. (Ibid.) The only issue a demurrer is concerned with is whether the complaint, as it stands, states a cause of action. (Hahn v. Mirda (2007) 147 Cal.App.4th 740, 747.)

Where

a demurrer is sustained, leave to amend must be allowed where there is a reasonable possibility of successful amendment. (Goodman v. Kennedy (1976) 18 Cal.3d 335, 348.) The burden is on the plaintiff to show the court that a pleading can be amended successfully. (Id.; Lewis v. YouTube, LLC (2015) 244 Cal.App.4th 118, 226.) However, “[i]f there is any reasonable possibility that the plaintiff can state a good cause of action, it is error to sustain a demurrer without leave to amend.” (Youngman v. Nevada Irrigation Dist. (1969) 70 Cal.2d 240, 245.)

B.

Discussion

Defendant demurs to the two causes of action alleged in Plaintiff’s complaint pursuant to Code of Civil Procedure

section 430.10, subdivision (e) and (f), on the grounds that the causes of action are barred by the statute of limitations, Plaintiff fails to allege sufficient facts to constitute the causes of action, and it is uncertain.

1.

First

Cause of Action – Negligence

The elements of medical malpractice are: “(1) the duty of the professional to use such skill, prudence, and diligence as other members of his profession commonly possess and exercise; (2) a breach of that duty; (3) a proximate causal connection between the negligent conduct and the resulting injury; and (4) actual loss or damage resulting from the professional's negligence.” (Simmons v. West Covina Medical Clinic (1989) 212 Cal. App. 3d 696, 701-02 [citations omitted].)

“In an action for injury or death against a health care provider based upon such person's alleged professional negligence, the time for commencement of action shall be three years after the date of injury or one year after the plaintiff discovers, or through the use of reasonable diligence should have discovered, the injury, whichever occurs first.” (Code Civ. Proc., § 340.5.) “The one-year limitation period of section 340.5 is a codification of the discovery rule, under which a cause of action accrues when the plaintiff is aware, or reasonably should be aware, of ‘injury,’ a term of art which means ‘both the negligent cause and the damaging effect of the alleged wrongful act.’” (Arroyo v. Plosay (2014) 225 Cal.App.4th 279, 290.) “This need not be actual knowledge of all the facts underlying the cause of action, and a ‘presumptive’ knowledge is inferred when the patient becomes aware of facts which would put a reasonable person on inquiry, or the patient's suspicions are aroused and she is alerted to the need for investigation.” (Barber v. Superior Court (1991) 234 Cal.App.3d 1076, 1082-83.)

Defendant argues that Plaintiff's negligence cause of action is time barred pursuant to Section 340.5. (Demurrer, at pp. 4-7.)

The complaint alleges that, on November 7, 2021, Defendant, a medical doctor, performed surgery on Plaintiff's fingers. (Complaint, ¶¶ 2, 9.) Plaintiff alleges that Defendant operated on Plaintiff's fingers improperly and did not follow proper procedure. (Id.,

¶ 9.) The complaint further alleges that, from the night of the surgery to present day, Plaintiff experienced severe pain “in her body and mind.” (Id., ¶¶ 10.) The complaint also alleges that, on November 5, 2025, Plaintiff sustained injuries to her head and emotional damages due to Defendant’s conduct. (Id., ¶¶ 13-14.)

The court finds that

the professional negligence cause of action is time barred. Under Section 340.5, the “injury” in this action occurred on November 7, 2021, at the latest. As such, Plaintiff had until November 7, 2024, to file the professional negligence cause of action. The complaint was not filed until February 24, 2026, over a year past the statute of limitations. Moreover, the complaint does not allege any facts supporting the tolling the statute of limitation. In fact, Plaintiff failed to address the statute of limitation arguments in opposition. (Cal. Rules of Court, rule 8.54, subd. (c) [“A failure to oppose a motion may be deemed a consent to the granting of the motion.”]; *Sexton v. Superior Court* (1997) 58 Cal.App.4th 1403, 1410.)

Accordingly, the demurrer is sustained as to the first cause of action.

2. Second Cause of Action – Negligent Infliction of Emotional Distress

“ ‘

“[The] negligent causing of emotional distress is not an independent tort but the tort of negligence. ...” ’ ” (*McMahon v. Craig* (2009) 176 Cal.App.4th 1502, 1509.) Its elements are the same: duty, breach of duty, causation, and damages. (*Ibid.*) A plaintiff may recover pain and suffering damages, including emotional distress damages, in an “ordinary” negligence action. (E.g., *Bigler-Engler v. Breg, Inc.* (2017) 7 Cal.App.5th 276, 299-300.) What sets a negligent infliction of emotional distress claim apart is that it permits recovery where a plaintiff has suffered only emotional distress, not any other harm. In the absence of physical injury, negligent infliction of emotional distress can be imposed only in two circumstances: (1) “bystander” situations, where an individual witnesses an injury to a closely-related third party, and (2) “special relationships,” where the tortfeasor owes the victim a special duty, as for instance a fiduciary or guardian. (*Christensen v. Superior Court* (1991) 54 Cal.3d 868, 884; *Burgess v. Superior Court* (1992) 2 Cal.4th 1064, 1073.)

As

noted in the demurrer, the court finds that the negligent infliction of emotional distress claim fails as Plaintiff alleges physical harm in addition to her emotional damages. Plaintiff may not assert a secondary negligent infliction of emotional distress claim where she can recover emotional damages within the negligence cause of action.

Accordingly, the demurrer is sustained as to the second cause of action.

III.

MOTION TO STRIKE

A. Legal Standard

Pursuant to Code of Civil Procedure section 436, “the court may, upon a motion made pursuant to Section 435, or at any time in its discretion, and upon terms it deems proper: (a) Strike out any irrelevant, false, or improper matter inserted in any pleading. (b) Strike out all or any part of any pleading not drawn or filed in conformity with the laws of this state, a court rule, or an order of the court.” (Code Civ. Proc., § 436.) The grounds for a motion to strike must “appear on the face of the challenged pleading or from any matter of which the court is required to take judicial notice.” (Code Civ. Proc., § 437.)

B. Discussion

Defendant seeks to strike Plaintiff’s request for attorney’s fees from the complaint. (Motion, at p. 5.)

As the court sustained Defendant’s Demurrer to the complaint, the motion is denied as moot.

IV.

CONCLUSION

1.

Defendant

Louis S. Park, MD's Demurrer to Plaintiff Dug Soon Kim's Complaint is
SUSTAINED.

2.

Defendant

Louis S. Park's Motion to Strike Portions of Plaintiff Dug Soon Kim's Complaint
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